Pine Valley Local Administrative District ("PVLAD")

Meeting Minutes

Pine Valley Fire Station, 680 East Main Street, Conference Room

March 11, 2026, 6:00 P.M.

Board Members: Frank Davie, Chairman
Tom Nielsen, Vice Chairman
Emily Neilson
Brad Esposito
Cortney Snow

PVLAD Assistants: Rick Peetz, Clerk (via Zoom)
Teri Forbes, Treasurer

Fire Chief Robert Hardy (via Zoom)

Others: Todd Breinholt, SC Broadband
Rob Nodine
Gene Phillips
Robert Hardy
Bob Dalley
John Robson
Duane Krohn
Audrey Krohn
Marc Rose
Toni Rose
Kendall Sullivan
Rick Foster
Jeff Gardner
Larry Gardner
Jody McDonald
Jill McDonald
Lisa Sloan
Johnnie Nichols

1. Welcome, Prayer, and Pledge of Allegiance – Emily Neilson and Frank Davie.

Chairman Frank Davie called the meeting to order at 6:00 p.m.

Emily Neilson offered the prayer and Chair Davie led the Pledge of Allegiance.

2. Welcome New Board Member – Brad Esposito.

New Board Member, Brad Esposito, was introduced and welcomed.

3. Pine Valley Overlay Zone Business – Emily Neilson.

A. South Central Communications – Underground Fiber Network Installation Request – Todd Breinholt.

Todd Breinholt from SC Broadband reported that they are looking to install fiber optics in the community. Fiber optics has endless limitations and can carry as much data as desired to any endpoint. SC Broadband is currently working in Central. They were unable to install their main line due to permitting issues between Enterprise and Central. They expect to begin work within the next month. Once the line is in, they will have all of the needed signaling for Central. Once complete, they plan to install a line from Central to Pine Valley along Pine Valley Highway.

Chair Davie commented that many in the community currently use Infowest or Starlink and asked if a survey of residents will be conducted.

Emily stated that the Overlay Zone addresses towers with any permitting done through the County. The Board will be involved as a conduit with respect to community information and coordination but has no legislative input. Mr. Breinholt described their work with the County and stated that they have hired environmental consultants who will obtain the necessary permits, which require various studies be conducted. Mr. Breinholt described their methods, which involve a small conduit ranging in size from the size of a pencil to as large as 1 ¼ inches. They do directional drilling, plowing, and very little digging. It was noted that there will be no cost to the community. Directional drilling involves a series of pipes that are pushed underneath the ground that come out in the desired location with very little scarring. Signing up for the service will be voluntary. The new infrastructure will also improve cell service in the Valley since Verizon will likely collocate on the tower.

Brad asked that any results from a Feasibility Study be passed onto the Board. He also suggested that a survey of the residents be conducted.

Larry Gardner thought fiber optics would be beneficial for the community and recognized that the expense will be borne by SC Broadband. He asked what efforts will be made to avoid hitting water lines. Mr. Breinholt stated that they will use Blue Stakes to identify them. The responsibility is on the owner of the utility through Blue Stakes. By law, owners are required to mark all utilities through Blue Stakes. Mr. Gardner asked how successful SC Broadband has been in avoiding water lines. Mr. Breinholt stated that they are not 100% but their crews will remain on site until any situation is remedied. Most of the

time, their crews have an idea of where a water line is at by following the valves. They also have a vacuum with pressurized water that helps identify water lines before they begin digging. While identifying water lines is not the responsibility of SC Broadband, they will work with the irrigation company.

In response to a question raised by Tom Nielsen, Mr. Breinholt explained that the responsibility is on the owner of the utility. Larry Gardner was confident that any issues would be resolved. He clarified that the irrigation company will work with SC Broadband.

Cortney commented that if a Feasibility Study or survey is conducted, they may want to determine if an order must be placed before crews begin work on a specific street. Mr. Breinholt stated that if a neighbor wishes to connect after crews have completed work in their area, they will come back .

Mr. Breinholt reported that no study was conducted in Central prior to the lines being put in. Emily commented that SC Broadband serves rural towns and will not move into an area without conducting an internal financial feasibility exercise to determine whether to choose to locate in a community. The Board's job is to protect the community from potential damage arising from the installation. Mr. Breinholt confirmed that all lines will be buried.

Bob Dalley asked about the building immediately west of the Fire Department in Central. Mr. Breinholt confirmed that it is related to the fiber. It serves as a central office for the community that will feed Pine Valley and the area further south.

Bob asked how the company is capitalized since they are not charging for the connection beyond the monthly fee. Mr. Breinholt stated that they are a community-owned cooperative with elected board members throughout Southern Utah.

Emily informed the Board that Mr. Breinholt contacted her after being referred by the County and he was present tonight as a courtesy. She considered this to be a good opportunity to ask questions and get clarification. Mr. Breinholt reported that over the past eight years they have brought fiber optics to small communities in Southern Utah. This is the end of that journey and they have worked with every community and never left one dissatisfied.

With regard to water lines, Mr. Breinholt stated that they are often difficult to find but they will work with the utility.

Emily asked about SC Broadband's communication strategy. Tom wanted to ensure that SC Broadband obtains all of the necessary permits in conjunction with a rollout to the community and a plan to notify residents. Mr. Breinholt agreed and expects the work to take four months to complete.

Johnnie Nichols commented on the potential for natural gas to come into the area and asked if that would impact the project. Mr. Breinholt stated that in that case, they will provide drawings of where their lines are.

Emily clarified that this was the first step. The next step will be to hold another meeting to let residents know what is planned before construction begins. Mr. Breinholt's intent was to complete the portion from Enterprise to Central before proceeding with the Pine Valley portion.

Cortney Snow moved to RECOMMEND that the matter next go to an open meeting to help facilitate SE Broadband providing fiber optics in the Valley. Tom Nielsen seconded the motion. The motion passed with the unanimous consent of the Board.

B. McDonald Cabin – Development Request.

The project details were presented. Emily reported that the Overlay Zone restricts the home's square footage to 50% of the lot to preserve open space. Work on the Overlay Zone began in 2022 to preserve Pine Valley's sense of place. The Board worked with the County and looked at other rural communities to establish an Overlay Zone. Surveys were conducted and community meetings held. There are a few mandates in the zone, with most being suggestions.

The McDonalds were provided with a copy of the full Overlay Zone to make sure they are aware of impacts such as outdoor lighting and fire pits. They were asked to attend tonight's meeting to avoid future surprises. Emily explained that when building a new home, there is a one-time impact fee to the Fire Department; however, in this case, the Special Service District has waived that fee for those who lost homes in the Forsyth Fire. Once approval is granted by the Board, the paperwork will be forwarded on to the County.

The total square footage of the McDonald Cabin was proposed at 2,984, which is well below the 50% threshold. Emily reported that outbuildings such as barns and garages are restricted in terms of how much lot space they can occupy. Wood shingles are prohibited, and all outdoor lighting must be fully shielded. The Overlay Zone contains regulations on walkways, but the County has since passed an Overlay Zone that is even more restrictive. She encouraged the McDonalds to get approval from the County before spending money on outdoor plans. Fencing must be of a non-obscuring material and be up to six feet in height on all four sides.

Emily reported that short-term rentals are allowed in Pine Valley, but only 5% of the housing inventory can be licensed as such. The residential standards also contain setback and accessory structure guidelines and

recommendations on contours and colors. There are also wildland fire restrictions. Other resources are available at pinevalleyutah.org.

Brad Esposito moved to APPROVE the McDonald residence. Cortney Snow seconded the motion. The motion passed with the unanimous consent of the Board.

4. Meeting Minutes.

A. Approval of the February 11, 2026, PVLAD Meeting Minutes.

Emily Neilson moved to APPROVE the minutes of February 11, 2026. Brad Esposito seconded the motion. The motion passed with the unanimous consent of the Board.

5. Board Member Reports.

A. Pine Valley Activities – Frank Davie.

The April activity will feature a performance by Geezer.

B. Traffic Report – Tom Nielsen.

Tom presented the Traffic Report and stated that even with the campground being closed, there has been a lot of traffic. There was more traffic in February than in January coming from the park. The sign at the west end of town is still malfunctioning and will be repaired when Rick Peetz returns. Near the Neilson home, 5,800 cars were reported in February. That sign was down this time last year, so there were no counts to compare the current numbers to. Traffic numbers and speeds are both up.

C. Washington County Crime & Sheriff’s Report.

There was no Crime Report and was to be removed from future agendas.

6. Community Watch – Tom Nielsen and Gene Phillips.

Gene Phillips reported that Tom will replace Herman as his assistant on Community Watch. The two met earlier in the day to prepare for their next presentation scheduled for April 25 from 4:00 to 6:00 p.m. It was reported that there are 113 active families on their rolls. The goal is to increase that to 150. Gene encouraged residents to report concerns to the Sheriff's Department and then notify their Block Captain. A new flyer was to be posted in the next few days along with an updated map.

7. Clerk and Treasurer's Reports (February) – Rick Peetz and Teri Forbes.

Teri reported that the bank account was reconciled and all was in order.

Rick reported that interest was received in the amount of $54. They also paid for bonding for the Treasurer in the amount of $54.

Emily Neilson moved to APPROVE the Clerk and Treasurer's Reports for February. Brad Esposito seconded the motion. The motion passed with the unanimous consent of the Board.

8. Completion Schedule for Code of Ethics, Conflicts of Interest, and Required Training – Tom Nielsen.

Tom reported that the required trainings had all been completed with the exception of Brad, who was a new member.

9. Citizen Requests.

There were no citizen requests.

10. Other Business.

There was no Other Business.

11. Adjournment.

Emily Neilson moved to ADJOURN. Tom Nielsen seconded the motion. The motion passed with the unanimous consent of the Board.

The meeting adjourned at 6:58 PM.

The next PVLAD meeting is scheduled for April 8, 2026.